



Contract Pack Index

With cover letter

Prepared by – **iorta TechNXT**

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1. Document Control

Date	Version	Author & Business Unit Info	Reviewed By & Business Unit Info	Approved By & Business Unit Info	Change History
03 October 2026	1.0	iorta TechNXT Corp.	Legal counsel (to be completed)	To be completed	Template for discussion; subject to review by iorta TechNXT legal counsel

2. Acronyms

Acronym / Symbol	Definition / Meaning
AMC	Annual Maintenance Contract
BIR	Bureau of Internal Revenue
CR	Change request
DPA	Data Processing Agreement
DPO	Data protection officer
DST	Documentary stamp tax
IC	Insurance Commission
LoA	Letter of Award
MSA	Master Services Agreement
NDA	Non-disclosure agreement
NPC	National Privacy Commission
OOTB	Out of the box
PHP	Philippine peso
SaaS	Software as a service
SEC	Securities and Exchange Commission
SLA	Service level agreement
SOW	Statement of work
TIN	Taxpayer identification number

UAT	User acceptance testing
VAT	Value-added tax

3. About this document

This document is the entry point to the iNXT BrokerVerse OOTB contract pack of iorta TechNXT Corp. (**iorta TechNXT**). It has two parts:

- **Part 1, for the client:** a cover letter that goes with the contract set sent to [Client legal name] (the **Client**) for signature.
- **Part 2, internal to iorta TechNXT:** the index of the documents, which documents apply to each commercial model and hosting option, the signing order, the order of precedence, and the checklists for the sales and legal teams.

Part 2 is internal. Send the Client the cover letter and the documents that apply, not this whole document. The floor prices and approval limits stay in the Negotiation Playbook, which is never sent.

All documents in the pack are templates for discussion, subject to review by the parties' legal counsel. Text in [square brackets] is a placeholder or an option.

4. Part 1: cover letter

[iorta TechNXT letterhead]

[Date]

[Client legal name]

[Address]

Attention: [name, title]

Subject: Contract set for iNXT BrokerVerse OOTB, proposal ref. [reference]

Dear [name],

Thank you for selecting iNXT BrokerVerse OOTB [as confirmed in your Letter of Award dated [date] / as accepted in the Proposal Acceptance form dated [date]]. We enclose the contract set for your review and signature.

The contract is built in layers. The **Master Services Agreement** sets the general terms once. The **Order Form** records this purchase: the package, the number of named users, the hosting option, the term, the fees and the schedules that apply. Each schedule covers one subject: the licence or the subscription, the implementation, support and service levels, hosting, data processing and change requests. Three annexes list the services and rates, each party's responsibilities and, where they apply, the exit arrangements.

#	Document	Why it is in your set
1	Master Services Agreement	General terms for every purchase
2	Order Form no. [number]	This purchase: [package], [perpetual licence / subscription], [number] named users, [hosting option], [term]
3	[Perpetual Software Licence Agreement / Software Subscription Agreement]	Your right to use iNXT BrokerVerse OOTB
4	Implementation Statement of Work	Scope, phases, deliverables, acceptance and milestone payments of the implementation
5	Change Request Procedure and Form	How changes are requested, priced and approved
6	Annual Maintenance and Support Agreement and SLA	Maintenance, support hours, severity levels and response and restore targets
7	[Hosting and Infrastructure Services Agreement]	[Hosting of the production and UAT environments by iorta TechNXT on [provider and region]]
8	Data Processing Agreement	Processing of personal data under the Data Privacy Act of 2012
9	Service Catalogue and Rate Annex	Services, units and rates; out-of-scope list
10	Customer Responsibilities and RACI Annex	What each party provides and does
11	[Exit and Transition Plan]	[Return and deletion of your data when the subscription or hosting ends]
12	[Source Code Escrow Agreement]	[Optional escrow of the source code with an independent escrow agent]

For information, we also enclose the forms that will be used during the project: the UAT Sign-off and Go-live Acceptance Certificates and the Hypercare Exit and Handover to Support Certificate.

What we ask from you

1. Review the set with your legal counsel, data protection officer and tax adviser. We would be glad to walk your team through it.
2. Confirm with your tax adviser the withholding treatment of [the licence fee / the subscription fee], which we will record in the Order Form.
3. [Confirm the hosting location. Under the AWS and Azure options, data is stored in Singapore; please record the transfer in your privacy impact assessment. The local partner option keeps the data in the Philippines.]
4. Sign the documents in the order in the table below, with your board resolution or secretary's certificate for the signatories.

Step	Document	Timing
1	Master Services Agreement and Data Processing Agreement	Together
2	Order Form with the schedules and annexes	Same day as step 1, or after it
3	[Source Code Escrow Agreement, with the escrow agent]	[Before Go-Live; the first deposit is due within 60 days of Go-Live]

The first implementation payment (40% of the [implementation / onboarding] fee) is invoiced on signing of the Order Form. The planned mobilisation date is [date] and the target go-live date is [date].

The prices in the Order Form are those of our proposal ref. [reference], valid until [date]. All amounts are in Philippine pesos and exclude 12% VAT.

Please contact me with any question.

Sincerely,

[Name]

[Title], iorta TechNXT Corp.

[E-mail] | [Telephone]

Enclosures: as listed above.

5. Part 2: index of the contract pack

5.1 Documents

#	Document	File name after iNXT_BrokerVerse_	Type	Signed by
1	Mutual Non-Disclosure Agreement	Mutual Non Disclosure Agreement	Pre-contract	iorta TechNXT and the prospect
2	Letter of Award and Proposal Acceptance	Letter of Award and Proposal Acceptance	Pre-contract	The Client; acknowledged by iorta TechNXT
3	Master Services Agreement	Master Services Agreement	Framework	Both
4	Order Form	Order Form	Purchase	Both
5	Perpetual Software Licence Agreement	Perpetual Software Licence Agreement	Schedule	Both
6	Software Subscription Agreement	Software Subscription Agreement	Schedule	Both
7	Implementation Statement of Work	Implementation Statement of Work	Schedule	Both
8	Change Request Procedure and Form	Change Request Procedure and Form	Schedule and form	Part of the Order Form; forms signed per change
9	Annual Maintenance and Support Agreement and SLA	Annual Maintenance Support and SLA	Schedule	Both
10	Hosting and Infrastructure Services Agreement	Hosting and Infrastructure Services Agreement	Schedule	Both
11	Data Processing Agreement	Data Processing Agreement	Schedule	Both, with the DPOs
12	Service Catalogue and Rate Annex	Service Catalogue and Rate Annex	Annex	Part of the Order Form
13	Customer Responsibilities and RACI Annex	Customer Responsibilities and RACI Annex	Annex	Both
14	Exit and Transition Plan	Exit and Transition Plan	Annex	Part of the Order Form; Annexes C and D signed at exit
15	Source Code Escrow Agreement	Source Code Escrow Agreement	Optional three-party agreement	iorta TechNXT, the Client and the escrow agent
16	UAT Sign-off and Go-live Acceptance Certificates	UAT and Go Live Acceptance Certificates	Forms	The Client; iorta TechNXT
17	Hypercare Exit and Handover to Support Certificate	Hypercare Exit and Handover Certificate	Form	The Client; iorta TechNXT
18	Contract Pack Index and Cover Letter	Contract Pack Index and Cover Letter	This document	Not signed

File names are in docs/package/03_Contracts, start with iNXT_BrokerVerse_ and use underscores in place of spaces. Each file exists as .docx (for editing) and .pdf (for reading). The editable sources are in docs/package/source/contracts.

5.2 Documents by commercial model

The four columns are the licence models combined with the two hosting choices. The packages of the price book map to them: Essentials is a subscription hosted by the Client; Standard is a subscription hosted by iorta TechNXT on AWS; Ownership is a perpetual licence hosted by iorta TechNXT on AWS; Ownership Plus is a perpetual licence hosted by a local partner in the Philippines with 24x7 Severity 1 support. A perpetual licence hosted by the Client has no pre-set package and is quoted with the same rates.

Document	Perpetual, Client hosts	Perpetual, iorta TechNXT hosts	Subscription, Client hosts	Subscription, iorta TechNXT hosts
Mutual NDA	Before demo	Before demo	Before demo	Before demo
Letter of Award or Proposal Acceptance	Recommended	Recommended	Recommended	Recommended
Master Services Agreement	Required	Required	Required	Required
Order Form	Required	Required	Required	Required
Perpetual Software Licence Agreement	Required	Required	Not used	Not used
Software Subscription Agreement	Not used	Not used	Required	Required
Implementation SOW	Required	Required	Required (onboarding)	Required (onboarding)
Change Request Procedure	Required	Required	Required	Required
AMC and SLA	Required (AMC from Year 2)	Required (AMC from Year 2)	Required (included in the fee)	Required (included in the fee)
Hosting Agreement	Not used	Required	Not used	Required
Data Processing Agreement	Required	Required	Required	Required
Service Catalogue and Rate Annex	Required	Required	Required	Required
RACI Annex	Required	Required	Required	Required
Exit and Transition Plan	Not used	Required (hosting exit)	Required	Required
Source Code Escrow Agreement	Optional	Optional	Not available	Not available
Acceptance certificates	Used in delivery	Used in delivery	Used in delivery	Used in delivery
Hypercare exit certificate	Used in delivery	Used in delivery	Used in delivery	Used in delivery

Notes:

1. The Data Processing Agreement is required in every model. Even when the Client hosts, iorta TechNXT processes personal data during data migration and support.
2. Under the hosting options, the Hosting Agreement states the provider and region: AWS Singapore (option A), Azure Southeast Asia (option B) or a local partner in the Philippines (option C). Options A and B are a transfer of personal data outside the Philippines, which the Client decides and documents; the Order Form records the data location.
3. 24x7 Severity 1 support is an option in any model, stated in the Order Form and priced in the Rate Annex. It is included in Ownership Plus.

5.3 Signing order

Step	Document	Signed by	When	Notes
1	Mutual NDA	iorta TechNXT and the prospect	Before a demonstration with the prospect's own data or a discovery workshop	Demonstrations with sample data need no NDA
2	Letter of Award or Proposal Acceptance	The Client	After selection	Optional mobilisation before signature, with a cost cap
3	Master Services Agreement	Both, with board resolutions or secretary's	Contract signing	Optional notarial acknowledgment

Step	Document	Signed by	When	Notes
		certificates		
4	Data Processing Agreement	Both, with the DPOs named	Same sitting as the MSA, and in any case before any personal data reaches iorta TechNXT	Annex 3 sub-processors match the hosting option
5	Order Form with the schedules and annexes for the model	Both	Same sitting as the MSA, or after it	Triggers the first 40% implementation invoice
6	Source Code Escrow Agreement	iorta TechNXT, the Client and the escrow agent	Before Go-Live; first deposit within 60 days of Go-Live	Perpetual only, if selected
7	Change Request forms	Approvers by band	During the term, per change	
8	Acceptance certificates (SOW Annex A for each phase; UAT; Go-live)	The Client; iorta TechNXT	At each phase	UAT sign-off triggers the second 40%; Go-Live the final 20% and the licence fee or Monthly Fee
9	Hypercare Exit and Handover to Support Certificate	The Client; iorta TechNXT	After the first month-end close	Start of support under the Support Agreement
10	Exit and Transition Plan annexes	The Client; iorta TechNXT DPO	At exit	Confirmation of data return; certificate of deletion

5.4 Order of precedence

The order of precedence is set in the MSA (Order of precedence clause). If documents conflict, the first in this list prevails:

1. The Data Processing Agreement, on matters of personal data.
2. The Order Form, only for that purchase and only where it expressly states that it overrides the MSA.
3. The Master Services Agreement.
4. The schedules named in the Order Form, with their annexes: the Perpetual Software Licence Agreement or the Software Subscription Agreement, the Change Request Procedure, the Annual Maintenance and Support Agreement and SLA, the Hosting and Infrastructure Services Agreement, the Service Catalogue and Rate Annex, the Customer Responsibilities and RACI Annex and the Exit and Transition Plan.
5. The Implementation SOW.
6. The Documentation.

Specific rules in the documents themselves:

Rule	Where it is stated
Rates in the Order Form prevail over the Service Catalogue and Rate Annex	MSA; Rate Annex
The clauses of the MSA, the Subscription Agreement, the Hosting Agreement and the DPA prevail over the Exit and Transition Plan	Exit and Transition Plan
The clauses of the MSA, the SOW and the Support Agreement prevail over the RACI Annex	RACI Annex
Between iorta TechNXT and the Client, the Licence Agreement prevails on the scope of the licence; the Escrow Agreement prevails on the	Source Code Escrow Agreement

Rule	Where it is stated
deposit, verification and release procedure	
Acceptance certificates and Change Request forms record facts and approvals and do not amend the MSA, the Order Form or the SOW; an approved Change Request changes the plan and fees of the Order Form from its approval date	MSA; Change Request Procedure; certificates
The MSA and the Order Forms replace earlier proposals and understandings, including the Letter of Award, on their subject	MSA, General (entire agreement)

Recommended for legal review: the MSA does not rank the schedules among themselves. The recommended rule is that the schedule that deals specifically with the subject prevails (the Hosting Agreement on hosting, the Support Agreement on support, the licence or subscription schedule on the right of use). Legal counsel to confirm and, if agreed, add it to the MSA.

6. Checklist for the sales team

Complete before the contract set leaves iorta TechNXT. Keep the completed checklist in the deal file.

6.1 Deal and pricing

#	Check	Done
1	NDA on file if the prospect shared its own data or attended discovery	[]
2	Quotation produced from the price book Quick Quote, at list price, within its 90-day validity	[]
3	Every discount shown as a separate line against the list price, with the lever named	[]
4	Discount approvals recorded in writing for the highest discount on any component: account manager up to 5%, sales head up to 10%, CEO up to 15% (hosting, day rates and change requests: 0%, 5% and 10%); nothing below the floor	[]
5	AMC rate (22%) and yearly escalation (5%) not discounted	[]
6	Conditions of each lever written into the Order Form, with the effect if not met	[]
7	Letter of Award or Proposal Acceptance received	[]

6.2 Order Form content

#	Check	Done
8	Client legal name, SEC registration, TIN and IC certificate of authority match the Client's documents	[]
9	Licence model and package; named users and size; minimum billable users for a subscription	[]
10	Lines of business to configure and training days included	[]
11	Hosting option and data location; environments; DR	[]
12	Optional services: 24x7 Severity 1 support, extra training days, legacy sources, integrations, environments, on-site days	[]
13	Term, renewal and early termination right; source code escrow (perpetual only)	[]
14	Payment schedule: 40/40/20 for implementation or onboarding; licence fee 100% on Go-Live; recurring fees as in the Rate Annex	[]
15	Withholding agent status of the Client and the tax treatment of the licence fee confirmed by both tax advisers	[]
16	Schedules that apply ticked, matching the table "Documents by commercial model"	[]
17	Planned mobilisation and target go-live dates agreed with the head of delivery	[]
18	Figures in the Order Form, the schedules (Schedule 1 of the licence or subscription, the SOW fee table, Schedule 1 of the Hosting Agreement) and the Letter of Award agree	[]

6.3 Hand-off

#	Check	Done
19	Legal review requested where the checklist for the legal team requires it	[]
20	Signed deal file handed to delivery and finance; welcome e-mail sent within 2 working days of signing	[]

7. Checklist for the legal team

7.1 Always

#	Check	Done
1	Parties' details and signatory authority (board resolution or secretary's certificate)	[]
2	Every bracketed option chosen or deleted; no placeholder left	[]
3	MSA options: termination for convenience (A or B); final dispute resolution (arbitration or courts); late payment interest; documentary stamp tax; publicity and reference clause	[]
4	Special terms in the Order Form state expressly whether they override the MSA	[]
5	DPA: DPOs named; breach notice period to the Controller; Annex 3 sub-processors match the hosting option; remote access countries	[]
6	Hosting outside the Philippines: the Client's transfer decision and privacy impact assessment reference recorded in the Order Form and Hosting Agreement Schedule 1	[]
7	Electronic signature and counterparts accepted by both sides, or wet-ink signature and notarial acknowledgment arranged	[]

7.2 Legal review required before release

Legal counsel reviews and approves before the set is sent when any of these applies. The "Who may change it" column follows the contract positions of the Negotiation Playbook.

Trigger	Standard position	Who may change it
Change to the limitation of liability, or the data protection cap option chosen	Fees paid and payable under the Order Form in the 12 months before the event; no indirect loss	CEO with legal counsel
Change to the platform IP clause	iorta TechNXT keeps all rights; the Client owns its data	Not negotiable
Payment term above 30 days	30 days from invoice	Sales head up to 45 days
Change to suspension for non-payment	After 60 days, with 10 Business Days' notice	CEO
Change to auto-renewal or notice of non-renewal	Yearly renewal after the initial term; 90 days' notice	Sales head
Change to service credits or their cap	Capped at 10% of the monthly fee of the affected service	CEO with legal counsel
Governing law or venue other than the Philippines and the MSA dispute steps	Philippine law; negotiation, mediation, then arbitration or courts	Legal counsel
Source code escrow requested	Optional, at the Client's cost, perpetual licence only	Sales head; escrow agent's terms reviewed by legal counsel
Client's own contract paper or major redline	iorta TechNXT pack	Legal counsel and CEO
Early termination right in a committed term	None in the Initial Term	CEO

8. Owner and legal decisions open

#	Decision	Owner
1	Rule for conflicts between schedules (see Order of precedence)	Legal counsel
2	Whether the MSA confidentiality clause replaces the Mutual NDA from the MSA Effective Date, or both run in parallel	Legal counsel
3	Choice of escrow agent and its standard terms	Owner and legal counsel
4	Early termination fee for committed terms (all or 50% of the remaining recurring fees)	Owner
5	Late payment interest (1% a month or the legal rate) and the party that bears documentary stamp tax	Owner and legal counsel

9. Document Sign-Off

Serial Number	Description	Owner	Status
1	Review by iorta TechNXT legal counsel; owner decisions listed in the last chapter	iorta TechNXT	Open

Sign Off Date	Signature	Approved By	Department & Project Role



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